

THE DELINQUENT

Vol IV, No. 8

August, 1914

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VOLUME IV, No. 8.

AUGUST, 1914

THE DELINQUENT
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AT 135 EAST 15th STREET, NEW YORK CITY.

THIS COPY TEN CENTS.

ONE DOLLAR A YEAR

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TOM BROWN AT AUBURN

BY HASTINGS H HART.

Director Child Caring Work, Russell Sage Foundation.

[This very illuminating book review of "Within Prison Walls," a book by Thomas Mott Osborne, has, by agreement, been published jointly in *The Delinquent* and *The Survey*. The editor of *The Delinquent* had at first planned to give to several persons the pleasant task of reviewing Mr. Osborne's important book. But Dr. Hart has written so graphic a review that we shall be content with this. The second article in this month's magazine follows logically this review.]

In his book, "Within Prison Walls," "Tom Brown," (Hon. Thomas Mott Osborne) has given a remarkable study of the mind of the convict. This book should be read in connection with Donald Lowrie's book, "My Life In Prison," which portrays the prisoner from the vantage point of actual and prolonged experience but without the advantage of Mr. Osborne's wider knowledge of human life and human philosophy.

Mr. Osborne's study is an astonishing achievement for a single week. To break the crust of officialism and without legal authority to command the co-operation of unwilling prison officials; to overcome the suspicions and the reticence of the prisoners, to secure their general co-operation in his plan, and to gain admission to the inner circles of convict life; and then to really put himself in the place of a prisoner and to realize how he feels, how he thinks and to catch his viewpoint—to do all this in a week was an astonishing piece of work.

Of course, his work was fragmentary and incomplete, but the writer has known prison officers who have associated with prisoners for years without obtaining such a knowledge of their mental processes as Mr. Osborne gained in a week.

It is much to be regretted that Mr. Julian Hawthorne did not seize the opportunity of his experience at Atlanta and apply his literary genius to

record and analyze the effects of prison life upon himself and his associates. He might have written a classic equal to De Quincey's "Confessions of an Opium Eater," but he choose instead to retell the gossip and scandals of the State prisons, true and false, as given him by second and third-term convicts.

Mr. Osborne, having been appointed by Governor Sulzer as chairman of a commission to recommend improvements in the prison system of the State of New York, resolved to become a voluntary prisoner at Auburn and to put himself, as nearly as possible, in the place of the actual convict. He frankly declared his purpose in the prison chapel, asking the co-operation of the officers and prisoners to make his experience as realistic as possible; and they took him at his word.

He entered the prison gates in citizen's clothes and was registered by the receiving officer as "Thomas Brown, 33,333x." He was conducted by an officer to the tailor shop, where in a corner of the shop without any screens and in full view of all passers in and out, are three porcelain lined iron bath tubs side by side. He stripped, bathed and dressed in the conventional prison suit and was supplied with a "cake of soap, one towel and a bible." He was admonished by the Principal Keeper ("P. K."), was given a copy of the prison rules and was assigned to work in the basket shop. During the first two days he was catechized as to his past life, occupations, habits, etc., by the principal keeper, the chaplain, the doctor, and the clerk of the Bertillon identification system, with much repetition.

It had been agreed with the warden that Tom Brown should be placed, at first, with the "Idle Company," a group of prisoners who were characterized by one of the officers as "the toughest bunch of fellows in the prison." He was disappointed therefore when he found himself in the basket shop where the men were courteous, communicative and helpful, and was astonished after two days to discover that this was the identical "worst bunch in the prison" of which he had been told. Tom Brown was assigned to a cell 4 by 7½ feet and 7½ feet high. (Many of the cells are only 3½ feet wide). Many cells of this kind contain two men each. The cell contained a stool, a folding shelf, a folding bed, a wash basin, a tin cup, a broom, a small wooden locker, and an electric bulb.

Tom Brown swung open his cell door at a signal, marched in line, carried out and emptied his own cell bucket, ate prison fare in the prison dining-room (including prison hash), did his stint in the basket shop with refractory material which made his fingers sore, and served on a detail moving railroad cars with block and tackle. He received from his fellow prisoners donations of sugar, of doubtful origin, for his oatmeal. He received communications and newspapers from numerous sources by underground communication. He learned to talk without moving his lips and he found himself instinctively joining with his associates “agin the government.” He details most interestingly the petty items that make up the life of the prisoner and revealed how much unhappiness may be caused by things which appear insignificant in themselves, such as the collapsing of the folding cot, under inexperienced hands, after the extinguishment of the lights.

Tom Brown reveals startlingly the horrors of prison life to the man of refined sensibilities—the shock of the first night of cell life when the lights went out.

“The bars are so black that they seem to close in upon you,—to come nearer and nearer, until they press upon your forehead.... You can feel the blackness of those iron bars across your closed eyelids; they seem to sear themselves into your very soul. It is the most terrible sensation I ever experienced. I understand now the prison pallor; I understand the sensitiveness of this prison audience; I understand the high nervous tension which makes anything possible. How does any man remain sane, I wonder, caged in this stone grave, day after day, night after night?”

He tells the ghastly story of the collapse of a poor old prisoner in a shop:

“In due time a litter is brought; the pitiful fragment of humanity is placed gently upon it and is carried out of the shop into which he will probably never return. The look on his face was one not easy to forget in its white stare of patient suffering. It seemed to typify long years of stolid endurance until the worn-out old frame had simply crumpled under the accumulated load.”

He experienced the humiliation of being the object of pursuit by pertinacious curiosity-hunters and camera-fiends; yet the change in his

appearance was so great that he escaped recognition by personal friends who were watching carefully for him. The crowning horror he describes as follows:

“The cell house has settled down for the night. Only a few muffled sounds make the stillness more distinctly felt. Then, suddenly, the unearthly quiet is shattered by a terrifying uproar. It is too far away to hear at first anything with distinctness; it is all a confused and hideous mass of shouting—a shouting first of a few, then of more, then of many voices. I have never heard anything more dreadful—in the full meaning of the word—full of dread. My heart is thumping like a trip hammer and the cold shivers run up and down my back.

“I jump to the door of the cell, pressing my ear close to the cold iron bars. Then I can distinguish a few words sounding against the background of the confused outcry: ‘Stop that!’ ‘Leave them alone!’ ‘Damn you, stop that!’ Then some dull thuds; I even fancy that I hear something like a groan, along with the continued confused and violent shouting. What can it be!

“While I am perfectly aware that I am not in the least likely to be harmed, I am shivering close akin to a chill of actual terror. If anyone near at hand were to give vent to a sudden yell I feel that I might easily lose my self control and shout and bang my door with the rest of them.

“The cries continue, accompanied with other noises that I cannot make out. Then my attention is attracted by whispering at one of the lower windows.... It is so dark outside that I can see nothing, not even the dim shapes of the whisperers....

“The shouts die down. There are a few more vague and uncertain sounds—all the more dreadful for being uncertain; somewhere an iron door clangs! Then stillness follows, like that of the grave.”

Tom Brown reported this mysterious occurrence to the warden who promised to investigate. Next day the warden “has inquired into it, he says, and found it was only a case of a troublesome fellow sent up from Sing

Sing, who was making some little disturbance in the gallery. After they had admonished him he wouldn't stop, so they had to take him down to the jail. When the officer entered his cell, he threw his bucket at the officer and there was a little row. 'I'm inclined to think,' adds the warden, 'that he may be a little bit crazy, and I'm ed further investigation, telling the warden that, from information which has come to him, he thinks that the officers are "trying to slip one over" on him.'

From his fellow prisoners Tom Brown obtained what he believes to be the correct version of the incident, as follows: "There had lately been sent up from Sing Sing a young prisoner ... pale, thin and undersized; weight about 120 pounds; age 21." On charge of impertinence to an officer he had been kept in a dark punishment cell five days, on bread and water. (The allowance of water was 3 gills per day). He was sent back to work but was unfit and next day remained in his cell ill, but "in spite of his repeated requests, the doctor was not summoned. The reason probably was that he was in the state known in prison as bughouse—that is to say at least flighty, if not temporarily out of his mind".... "In the evening, he created some disturbance by calling out remarks which violated the quiet of the cell-block." "I understand," Tom Brown says, "something of this sort: 'If you want to kill me, why don't you do it at once and not torture me to death?' He seemed to be possessed with the idea that his life was in danger."

"Now here was a young man, hardly more than a lad, in a sick and nervous condition that had produced temporary derangement of mind. What course did the system take in dealing with that suffering being! Two keepers opened his cell, made a rush for him and knocked him down.... During the brief scuffle in the cell the iron pail and the bucket were overturned. Then, after being handcuffed, the unresisting if not unconscious youth was flung out of his cell with such violence that, if it had not been for a convict trusty who stood by, he would have slipped under the rail of the gallery and fallen to the stone floor of the corridor four stories below, and been either killed or crippled for life.

"Then the two keepers, being reinforced by a third, dragged their victim roughly down stairs, partly on his back, kicked and beat him on the way, and carried him before the Principal

Keeper, who promptly sent him down to the jail again.” (i.e., the punishment cells).

“This scene of violence could not pass unnoticed; and the loud protests and outcries of the prisoners whose cells were near by, ... were the sounds I heard far away in my cell.” A trusty who saw most of the occurrence “so far forget his position as to venture the opinion that it was ‘a pretty raw deal’. This remark was overheard by an officer; and the trusty at once received the warning that he had better keep his mouth shut and not talk about what didn’t concern him.

“If it is realized that these officers have what almost amounts to the power of life and death over the convicts it can be understood that such a warning was not one to be lightly disregarded.”

After three days further detention in the “jail” the prisoner was transferred to the hospital, where he received proper care, but “he had at first no clear recollection of the brutal treatment of which he had been the victim.”

An interesting side light is thrown upon the official side of prison life by an episode connected with this case of punishment. Immediately after the episode, Tom Brown questioned one of the officers who refused to answer the questions. On the following morning the same officer came to Tom Brown, who writes:

“This morning he is exceedingly bland.... He enters upon a long rigmarole, the gist of which is how necessary it is for a man to do his duty.... Then he casually turns the conversation around to show how closely connected he is to various admirers of my father and myself, and gracefully insinuates that he also shares these feelings.... It is borne in upon me that he not only knows all about last night’s disturbance, but that he was probably concerned in it, and is now deliberately trying to switch me off the track.”

Another side light upon the official side of prison life is that Tom Brown discovered that prisoners under punishment were never released from the jail on Sunday. When he made an appeal to the Principal Keeper to transfer

the sick boy from the dark cell to the hospital, the Principal Keeper objected strenuously, but when the prison physician joined in the appeal, “finally the P. K. with an air of triumph brings out his last and conclusive argument. ‘There is a great deal in what you say, gentlemen, and I should like to oblige you, Mr. Osborne, but you see this is Sunday; and you know we never let ’em out of jail on Sunday.’ ... ‘Sunday!’ I exclaimed. ‘In Heaven’s name, P. K., what is Sunday? Isn’t it the Lord’s Day? Very well, then. Do you mean to tell me you actually think if you take a poor sick boy, with an open wound in his ear, out of a close, dirty, vermin-filled, dark cell, where he isn’t allowed to wash, and has but three gills of water a day ... and put him back into the hospital, where the Doctor says he belongs—do you really think that such an act of mercy would be displeasing to God?’ ‘Why,’ he gasps, ‘that’s true. I think you’re right. We put ’em in on Sunday; why shouldn’t we take ’em out?’”

Mr. Osborne certified that this story is fully corroborated by careful inquiry from different men and comments as follows:

“Doubtless some will say that the statements of convicts are not to be believed. That touches upon one of the very worst features of the situation. No discrimination is ever made. It is not admitted, that while one convict may be a liar, another may be entirely truthful; that men differ in prison exactly as in the world outside. It is held, quite as a matter of course, that they are all liars, and an officer’s word will be taken against that of a convict or any number of convicts. The result is that the officers feel themselves practically immune from any evil consequences to them from their own acts of injustice or violence. What follows this is inevitable. Our prisons have often been the scenes of intolerable brutality, for which it has been useless for the victims to seek redress. They can only cower and endure in silence; or be driven into insanity by a hopeless revolt against the System....

“The point is this: that no convict has any rights—not even the right to be believed; not even the right to reasonable considerate treatment. He is exposed without safeguard of any sort to whatever outrage and inconsiderate and brutal keeper may

choose to inflict upon him; and you cannot under the present system guard against such inconsiderate and brutal treatment.

“I should not like to be understood as asserting that all keepers are brutal or even a majority of them.” ... But, “we must recognize, in dealing with our Prison System, that many really well-meaning men will operate a system, in which the brutality of an officer goes unpunished, in a brutal manner.

“The reason of this is not far to seek—a reason which also obtained in the slave system. The most common and powerful impulse that drives an ordinary, well-meaning man to brutality is fear.... In prison, where each officer believes that his life is in constant danger, the keeper tends to become callous; the sense of that danger blunts his higher qualities.... Undoubtedly there is basis for his fear, for some of those men are dangerous, rendered more so by the nerve-racking System. I can conceive no more terribly disintegrating moral experience than that of being a keeper over convicts.

“I am not now in any way disputing the necessity of a keeper being constantly on his guard; I am not saying whether this view of things is right or wrong; and when I use the word fear I do not mean cowardice—a very different thing, for a brave man can feel fear. I am simply trying to point out that in prison, as elsewhere, when men are dominated by fear, brutality is the evitable result.”

In view of this episode, Tom Brown determined to undergo the horrors of the “Jail.” To this the prison warden very reluctantly consented. It was agreed that he should be treated exactly like a convict under punishment except that a “jail suit” should be cleansed for his use, whereas the ordinary prisoners use them interchangeably, without cleaning. Accordingly, Tom Brown suddenly knocked off work, declaring that the material furnished was unfit and he wasn’t going to work any more anyhow. His shop captain, finding him obdurate, had no option and was obliged to send him to the Principal Keeper who, finding him still obdurate, reluctantly ordered him to the “jail,” which Tom Brown describes as follows:

“A vaulted stone dungeon, about 50 by 20 feet, having on one side the death chamber for electrocuting murderers, and on the other side the prison dynamo with its ceaseless grinding, night and day. It is absolutely bare, except for one wooden bench along the north end, a locker where the jail clothes are kept, and eight cells, of solid sheet iron; floor, sides, back and roof. They are studded with rivets, projecting about a quarter of an inch. At the time that Warden Rattigan came into office there was no other floor; the inmates slept on the bare iron and the rivets! The cells are about 4½ by 8 feet and 9 feet high. There is a feeble attempt at ventilation—a small hole in the roof of the cell, which does not ventilate. Practically there is no air in the cell except what percolates in through the extra heavily grated door.” Two windows in the vaulted room outside admit some light but, except on a bright sunny day, an electric light is necessary in order to see the inside of the cell. “Up to the time of Supt. Riley’s and Warden Rattigan’s coming into office the supply of water for each prisoner was limited to one gill for 24 hours.”

There is a sink in the outer room but “the sink was not used for the prisoners to wash for the simple reason that the prisoners in the jail were not allowed to wash.”

On entrance, Tom Brown was instructed to take off his clothes and put on the jail suit which had been cleansed in anticipation of his coming. He says: “If these are the clothes which have been carefully washed and cleaned for me, I should like to examine—at a safe distance—the ordinary ones. They must be filthy beyond words.” He was carefully searched by the captain to discover whether he had any weapon or instrument upon his person. His handkerchief was taken from him, presumably to avoid danger of suicide, because a prisoner once strangled himself with his handkerchief. He was given a small tin water can.

The cell contained no seat, bed, mattress or bedding—nothing except a papier-mache bucket. A convict trusty handed in through a slot in the door a slice of bread and inserted the spout of a tin funnel through which he poured into the prisoner’s can exactly a gill of water to last through the night. The officers and the trusty departed and very soon five other prisoners in adjacent cells made themselves known. Then followed an

animated discussion on prison fare; ethics of the jail; comparative merits of transatlantic liners, politics, prison reform, etc. Tom Brown says: "On the whole, more intelligent, instructive and entertaining conversation it has seldom been my lot to enjoy." To his surprise he finds that these men, presumably the worst in the prison, are human and even sympathetic. One has been sent down "because he had talked back to one of the citizen instructors;" two others for a little scrap which involved no special bitterness; a fourth for hitting a convict with a crow bar because he had called him a bad name; the fifth was a sick boy whose ear was still discharging after an operation. He had been sent down for making trouble in the hospital and was not allowed a handkerchief to take care of the discharge from his ear. All prisoners punished, whatever the character of the offense, received the same treatment and in addition to confinement on bread and water were fined 50 cents for each day of confinement; the fine to be worked out at the rate of 1½ cents per day, allowed each prisoner as "earnings." The prisoner also has to wear a mark upon his sleeve from that day forward indicating that he has been punished and, if he has previously earned a good-conduct bar by a year's perfect record, that bar is taken from him and, finally, some portion, if not all, of the commutation time which he may have gained by previous good conduct is forfeited. Manifestly a prison punishment is a serious matter to the convict.

After four hours confinement Tom Brown was visited by two prison officers, it having been understood that he would not stay longer, but to their astonishment he refused to go, having determined to experience the full limit of jail life. They left him very reluctantly. As the night wore on he says:

"Now that all chance of escape is gone I begin to feel more than before the pressure of the horror of this place; the close confinement; the bad air; the terrible darkness, the bodily discomforts, the uncleanness, the lack of water. My throat is parched, but I dare not drink more than a sip at a time, for my one gill—what is left of it—must last until morning. And then there is the constant whir-whir-whirring of the dynamo next door and the death chamber at our backs."

The prisoners seek to mitigate their misery. One asks: "Say fellows! what would you say now to a nice thick juicy steak with fried potatoes?" One

“sings an excellent ragtime ditty;” another “follows with the Toreador’s song from Carmen, sung in a sweet, true, light tenor voice that shows real love and appreciation of music.

“This is the place where I had expected to meet the violent and dangerous criminals; but what do I find! A genial young Irishman, as pleasant company as I have ever encountered, and a sweet voiced boy singing Carmen.”

These entertainments over, the night drags on. The wooden floor proves a hard bed until a prisoner instructs him how to make a pillow of his felt shoes and his shirt. Bed bugs infest the place and after killing one, he imagines multitudes. The sick prisoner accidentally upsets his water can and soon becomes delirious, seeming likely to become a raving maniac. There is no way to summon an officer, but one of the prisoners with amazing tact and patience soothes his agitation until he finally falls asleep.

At last Brown falls into a doze but is speedily awakened by a patrolling officer who awakens the prisoners at 12:30 and 4:30 A. M. but refuses his request to renew the water spilled by the sick prisoner because it is “‘gainst the rules.”

At 6 A. M. on Sunday, Tom Brown is released from his punishment, convinced that the “System” is illogical, antiquated, barbarous, cruel and destructive to the character of prisoners and officers alike. He is exhausted, body and soul; but he finds strength to make a chapel address to the prisoners, which must have been memorable. The prisoners are tremendously impressed by the fact that this man of education, culture and wealth has voluntarily endured for six days the same treatment as themselves, in the endeavor to understand their situation and, if possible, to improve it; they recognize that the cell, the march, the shock and the dungeon affect the man of culture and refinement more keenly than the ordinary prisoner; but the thing which affects them most profoundly is the vicarious character of his act. They would almost apply to it the words of the prophet Isaiah: “Surely he hath borne our griefs and carried our sorrows.”

Mr. Osborne is not content to discover and reveal the vices of the prison system but he seeks a practical remedy. To this end he has taken counsel, not only with the prison authorities and students of penological science, but

also with the prisoners who live under the system and, some of whom, are keenly alive to its destructive influence. A prisoner in the shops gave him the basic idea. He says:

“For some years I have felt that the principles of self-government might possibly be the key to the solution of the prison problem; but as yet I have not been able to see clearly how to begin its application. There have seemed to be almost insuperable difficulties. In this connection Jack” (Jack Murphy, a prisoner) “made a suggestion which supplies a most important link in the chain.

“In discussing the various aspects of prison life we reached the subject of the long and dreary Sundays. Jack agrees with all those with whom I have talked that the long stretch in the cells, from the conclusion of the chapel service, between ten-thirty and eleven o’clock Sunday morning until seven Monday morning—over twenty hours, is a fearful strain both physical and mental upon the prisoners.

“‘Well, Jack,’ I say, ‘from what I have heard Superintendent Riley say, I feel sure he would like to give the men some sort of exercise or recreation on Sunday afternoons; but how could it be managed! You can’t ask the officers to give up their day off, and you don’t think the men could be trusted by themselves, do you!’

“‘Why not?’ says Jack.

“I look at him enquiringly.

“‘Why, look here, Tom. I know this place through and through. I know these men; I’ve studied ’em for years. And I tell you that the big majority of these fellows in here will be square with you if you give ’em a chance. The trouble is they don’t treat us on the level. I could tell you all sorts of frame-ups they give us. Now if you trust a man, he will try and do what’s right; sure he will. That is, most men will. Of course, there are a few that won’t. There are some dirty curs—degenerates—that will make trouble, but there ain’t so very many of those. Look at that road

work! Haven't the men done fine! How many prisoners have you out on the roads! About 130; and you ain't had a single runaway yet. And if there should be any runaways you can just bet we'd show 'em what we think about it.'

"Do you really think, Jack, that the Superintendent and the Warden could trust you fellows out in the yard on Sunday afternoons in summer!'

"Sure they could,' responds Jack.... 'And there could be a band concert.... And it would be a good sight better for us than being locked in our cells all day. You'd have fewer fights on Monday, I know that.'

"But how about the discipline! Would you let everybody out in the yard! What about those bad actors who don't know how to behave! Won't they quarrel and fight and try to escape?'

"But don't you see, Tom, that they couldn't do that without putting the whole thing on the bum, and depriving the rest of us of our privileges? You needn't be afraid we couldn't handle those fellows all right! Or why not let out only those men who have a good conduct bar! That's it!' He continues, enthusiastically warming up to the subject, 'That's it, Tom, a good conduct league, and give the privilege of Sunday afternoons to the members of the league.'"

This suggestion of Jack Murphy bore practical fruit. Soon after his "discharge," Mr. Osborne, with the co-operation of the Superintendent of Prisons and the Warden of Auburn Prison, succeeded in establishing a Good Conduct League composed of prisoners, with officers elected by their fellow prisoners. The prisoners are given the liberty of the yard on Sunday afternoons, with a greatly reduced force of guards. They march to and from their cells and their work under the direction of prisoners. They prepare entertainments with the permission and approval of their officers. This plan has now been in operation for several months without the slightest disorder or accident and with marked improvement in the spirit and behaviour of the men.

This inspiring demonstration represents no new discovery by Jack Murphy or by Mr. Osborne. It is only a re-discovery of what was practiced by Captain Alexander Machonochie at Norfolk Island with transported British convicts seventy years ago. The writer saw Colonel Gardner Tufts doing similar things with convicts at Concord, Massachusetts, nearly thirty years ago, where prisoners were carrying on evening literary societies in perfect order without the presence of an officer. He saw similar things done by Captain Hickox at the Michigan State Prison more than twenty years ago, where the old chaplain gathered 200 men in a single room for an evening assembly with no officer present but himself. This same principal is being worked out in the State prisons of Oregon and Colorado, in the Ohio State Reformatory at Mansfield and in Doctor Gilmour's splendid work at Guelph, Ontario. In all of these places it has been found that when you build a wall around a man he immediately wants to climb over it and that when you turn him loose and say, "I trust you and I know that you will not betray me," there is almost always an instant response.

Mr. Osborne believes that this is the first instance of the application of the democratic principle to the management of convicts in a large convict prison, and that the Auburn experiment differs from others in that the prisoners there themselves originated the movement. He says that "the good conduct of the prisoners is in reality an outward expression of an outward spiritual impulse." "Hence the name, 'Mutual Welfare League,'; hence the motto, 'Do good, make good.' By doing good to others the man makes good for himself."

Mr. Osborne's demonstrations make it clear that those who believe that severity is an essential part of prison methods need not worry. Every convict is punished. When you pillory a man before the world as a criminal, transport him by public conveyance and march him through the streets in irons, put him behind prison walls, deprive him of his liberty, subject him absolutely to the will of another man who holds practically the powers of life and death, lock him in an ill-ventilated prison cell, 4½ by 7 feet (perhaps with an uncongenial cell mate), dress him in prison garb, exhibit him to curious visitors at 25 cents per head, subject him to strict compliance with thirty to fifty exacting rules on pain of loss of privileges and increase of term, restrict his correspondence to two censored letters per month, permit him to see his wife and children only in the presence of an officer

and clad in prison garb—under these circumstances no one need question that the prisoner is punished, even though he may have the privilege of listening to a band concert and watching a baseball game once a week, conversing with his fellow convicts in subdued tones at meals and witnessing a moving picture show once or twice a month. Let it never be forgotten that the convict is punished!

Those who ridicule or condemn Mr. Osborne's adventure make a mistake. It may have been sensational, but there was need of a sensation. His experiment was valuable because it was sincere and because it has brought out the truth. But it has brought out only part of the truth.

We wish that Mr. Osborne would secure an opportunity to be installed as prison guard in some one of the great prisons of the United States like the Illinois State Penitentiary, the Indiana State Prison of Michigan City, or the Penitentiary at Pittsburgh, Pa. Let him go incog., unknown to anyone except the prison warden, and let him come into the same intimate familiarity with the life and thinking of the prison guard as that which he has acquired in the case of the prison convict. He has already discovered the demoralizing tendency of life of the prison guard, and has discovered its chief flaw, namely, the ruling principle of fear, to which must be added the lack of psychological understanding of the prisoner and the entire lack of any adequate preliminary training. There must be taken into account also the fact that there exists among prison guards, in an exaggerated degree, the sentiment that it is dishonorable to "snitch" upon a fellow officer and, while a superior officer is likely to report a subordinate for cruelty or misconduct, the exposure of such actions by a guard of equal rank is very unusual. The difficulty can only be overcome by improving the personnel and raising the moral standards of prison guards. The day is not far distant when training schools for prison guards will hold the same relation to prison work which training schools for nurses hold to well-conducted hospitals.

We wish that Mr. Osborne, or someone equally discerning, might put himself in the place of the convict all the way through and tell an equally convincing story. Let him go forth with a five-dollar discharge suit on his back so marked as to betray to every passing policeman the shop where it was made. Let him go out with five dollars or possibly ten dollars in his pocket to satisfy a sharpened appetite and find a job in these hard times. Let him meet the watchful policeman, or the plain clothes man, who advises

him that “We’re on to you.” Let him meet the discharged convict who solicits the loan of a dollar with implied threat of exposure. Let him take a job in good faith and render faithful service, only to be discharged at the end of the second week because somebody has given him away.

Let him be arrested, guilty or not guilty, as a suspect of some crime. Let him be subjected to the inquisition of “the third degree,” regardless of the rights which are supposed to be guaranteed to every citizen that he shall be deemed to be innocent until proven to be guilty. Let him experience the starvation, buffeting insults and detectives’ lies which are incident to this inquisition.

Then, by all means, let Mr. Osborne’s representative await trial in a county jail and discover the beauties of a System which is twice as vicious as the Auburn Prison System which he describes. Thrust him into a steel cage and exhibit him to all comers like a wild beast in a menagerie. Let him share his cell with five other prisoners in a place where he cannot keep himself free from vermin, where he cannot take a bath, and force him into intimate association, day and night, with a mob of prisoners who are kept in idleness, with no occupation except to corrupt one another and to concoct plans to escape by bribing or mobbing the jailer or by cutting out of jail.

Let him stand trial in a court whose judge is overwhelmed with business or is fixed in the tradition that severity is the only remedy for crime, with a prosecuting attorney whose reputation depends upon making as many convictions as possible. Let him have assigned to his defense an attorney who, because of inexperience, incompetency, or indifference, cannot present his case properly, in order that his innocence may be demonstrated, if he is innocent, or any mitigating facts may be made clear if he is guilty.

Or let Mr. Osborne’s representative essay the role of a paroled prisoner, going out as a ward of the State under the direction of a parole officer, in order that he may discover the efficiency and equity of the Parole Board, the fidelity and good-will of the parole officer, the patience and fair dealing of the employer, and the advantages and disadvantages generally of the parole system.

It is a good thing to call the attention of the public to the deficiencies of the convict prisons, and the public ought to know that Sing Sing is, and has been for many years, far worse than Auburn. Think of a prison where

rheumatism and tuberculosis form an inevitable part of the prison sentence for a large proportion of the prisoners, whose number can be definitely predicted! But the prison problem of the State of New York can only be solved by a thoroughly organized and persistent attack under the leadership of men and women who have social and economic vision.

And the prison problem of the State of New York will not be solved until it is recognized as a technical problem, demanding the services of tried and expert men. Prisons, like other educational institutions, should be headed by superintendents of demonstrated training and efficiency, selected without reference to geographical lines.

THE NEW FREEDOM AT AUBURN PRISON

BY O. F. LEWIS,
General Secretary, Prison Association of New York.

[This article has been reprinted from The Outlook, by special permission of that periodical. The editor of *The Delinquent* begs to say, that although he himself is the author of this article, he believes the new development of self-government at Auburn, as described in the following article, is of sufficient importance to warrant being called earnestly to the attention of our readers.]

The afternoon of the Fourth of July was drawing to a close in the long building-inclosed yard of Auburn Prison, in the State of New York. Fourteen hundred gray-suited inmates were playing a score of different games. The afternoon's track events had come to an end. The South Wing, with between four and five hundred prisoners, had won from the North Wing, with some nine hundred prisoners, in the varied contests. A silver cup, given by the president of a prominent mortgage company in New York, was the tangible goal of the exciting battle.

Suddenly the clear bugle notes of the "Retreat" sounded far down the yard, slowly and melodiously. Instantly the boys in gray began to fall into line at their appointed places. There was now silence where a moment before there had been bowling, baseball, running, dancing, piano, band, and the shouts of swarming inmates. Then came the first bars of the "Star-Spangled Banner," played by the prison inmate band. Off came the caps, and down across the breast. The flag sank slowly, lowered from the tall pole by three inmates. The music ceased, the caps were again donned, and from the extreme end of the yard rose suddenly a cheer:

"Rah! Rah! Rah!
Rah! Rah! Rah!
South Wing! South Wing!
Rah! Rah! Rah!"

Then, preceded by the band and with banners flying, the victorious athletes of the South Wing marched up the center walk between the files of other prisoners, to receive the silver cup from the hands of the donor, Mr. Richard M. Hurd.

I wish I had the power to make the readers of The Outlook sense in full the enormous significance for both present and future of this recent Fourth of July in Auburn Prison. You have read in these recent months so often of the greatly increased liberties granted to prisoners that mere games or the unchecked intercourse of prisoners on holidays seems no epoch-making novelty.

But history was made at Auburn Prison on Independence Day. For the fourteen hundred men not only ran off their own sports during the afternoon, but they practically ran themselves, through their appointed “delegates,” chosen from among their own numbers by their own votes. And assuredly no more orderly group could have been found on that Fourth of July anywhere between the Atlantic and the Pacific.

A year ago Auburn Prison was austere indeed. The holidays and the Sundays were grievously dreaded by the inmates—dreaded as they had been for generations, because a Sunday or a holiday meant that the inmates had been locked into their miserable little cells at about five o’clock on the previous day, and that, except for a few brief hours for chapel or for an entertainment on holidays, they were locked in all through the holiday until the next morning, when work recommenced. Thirty-six hours, more or less, in a wretched little cell, hardly large enough to turn around in, with no modern conveniences of toilet or wash-basins—simply a hole in the solid masonry wall of a building ninety-eight years old, built at a time when prison meant physical torture and oblivion, and when prison architecture aided to the maximum that purpose.

Is it any wonder that a prisoner recently said to me, on a Sunday afternoon at Clinton Prison in New York State, where they still lock up their prisoners from Saturday until Monday, with the exceptions noted: “My God! It’s a wonder we don’t all go insane in here!” Is it any wonder that at Auburn Prison, according to the words of one of the leading prisoners, the inmates used to consider themselves supremely lucky if by some means they could get “dope” on Saturday, with which to “put a shot into themselves” on

Sunday morning? Then they would lie befuddled and bevisioned during Sunday—the Lord’s Day! “And on Monday morning,” laconically said the prisoner, “we used to have the biggest number of fights in the shops of any day in the week. The effects of the drug were wearing off, you know.”

This summer the difference is enormous and fundamental. For an hour or a little more on each week-day, and for four full hours on Sunday, the prisoners are turned out to recreation according to their bent. And coincidentally with this all-important change in the prison’s policy toward the inmates has come an all-important reduction in the number of prison guards needed to supervise the prisoners at their play. On the morning of the Fourth, for instance, an entertainment was given in the auditorium by a local theatrical company. Practically all the inmates—fourteen hundred—were present. Many of the guards sat in one little corner of the room, in the extreme rear. They had been invited by the Mutual Welfare League, the prisoners’ organization, to attend if they desired!

In the afternoon there were four keepers in all in the yard, so I was informed. They were thoroughly inconspicuous. The “P. K.” (which is short for Principal Keeper) started the afternoon in uniform, but shortly changed to street clothes. “You’ll find him playing ball with the boys later today,” said one inmate to me. All the guarding at the several exits of the yard was done—apart from the few guards—by the “delegates” of the Mutual Welfare League.

The Mutual Welfare League! To many prison officials, long in the service, the name undoubtedly has a very sentimental sound. I frankly confess that several of us in the little party invited by Mr. Thomas Mott Osborne to attend the League’s celebration of the Fourth of July were skeptical. We were afraid it might prove to be amateurish and mushy, even though we knew of the signal value of Mr. Osborne’s self-imposed incarceration at Auburn Prison last fall, as shown by the Nation-wide attention given to his subsequent story of the fearful and unnecessary monotony and desperation of prison life. But, as one of our party said on Sunday morning, after we had sat for several hours with the Executive Committee of the League: “I didn’t exactly come to scoff and remain to pray; but I did come with doubt, and I go away converted.”

What is it, then, about this new freedom at Auburn Prison that has not only converted a cautious, conservative president of a board of reformatory managers in another State, but has led him within a week from his experience at Auburn to urge successfully the introduction of a similar league in his own institution? Two facts, principally, I think. In the first place, the Mutual Welfare League plan works. Secondly, there is a convincing air of sincerity, and even devotion, about it all.

May I repeat what seems to me the all-important fact about this development at Auburn? The prisoners, in their hours of recreation, in their attendance at chapel, in their attendance at Sunday afternoon concerts or entertainments, *run themselves in large measure*. They have not only given their promise to be good, but they have chosen their own inmate officers to see that they keep their promise. There is all the difference in the world between being run by a group of prison guards, even under the best of benevolent prison despotisms, and being run by prisoner guards of one's own election.

If, then, the most sacred prerogative of the traditional prison official can thus be usurped by the prisoners themselves, and if, in their own expressive language, they can "get away with it," in the sense of securing better order, more work in the shops, a marked reduction in the number of offences committed or reported, and a radical betterment in the always limited joy of life in a penal institution, what is the inference?

The organization and development of the Mutual Welfare League were simple enough. Last fall, when Mr. Osborne, as chairman of a prison reform commission that had been appointed by the Governor, sent himself to prison for a week, aided thereto by a friendly warden, he informed the prisoners at a previous chapel service that he was coming into prison to try to understand the prison life from the standpoint of the prisoner. He asked the inmates to regard him, "Tom Brown," not as a stool-pigeon, nor as simply a foolish amateur, but as thoroughly in earnest in his desire to better prison conditions by experiencing them, even if only briefly and partially for a week.

That was point Number One in the development of what has happened at Auburn. Those who make light of Mr. Osborne's brief career in prison may have a certain justification, in so far as the real prison life can be learned

only slowly; but, after all, the results of that October week of Mr. Osborne's, measured by general results both upon himself and upon the prison, have been perhaps the greatest in the history of the century-old prison.

Point Number Two in the development of the new freedom occurred in the basket shop, where Mr. Osborne was given as a teacher and side-partner for the week Jack Murphy, whom Mr. Osborne describes as a very fine and sincere man. From Murphy's character came unconsciously to Mr. Osborne the suggestion that prisoners could be trusted far more than had been the case at Auburn. "Why couldn't there be started here," asked Mr. Osborne, "a kind of mutual improvement or mutual welfare league among the prisoners, whereby, in return for pledges of obedience and loyalty to the prison administration, greater freedom and more privileges might be obtained?"

The third step toward the present modified form of self-government occurred after Mr. Osborne, having emerged from his week's imprisonment, gave public expression to his indignation at the alleged mediæval methods of treating human beings behind the bars. These published accounts, spread broadcast over the country, are well remembered. He set to work then to establish a league among the prisoners. And from the beginning he sought to have the League evolve its principles and its pledges from among the men themselves, not through him or through officials of the prison.

The organization was simple. Any prisoner could join the League. The motto was: "Do good, make good." Unquestionably the incentive in the minds of most inmates to join the League was that there might be something in it for them. When similar motives are eliminated from the minds of men who undertake enterprises on the outside of the prison, it will be time to criticise unfavorably such motives inside the walls.

From the League members—and at present nearly every prisoner in Auburn is a member, wearing his little green and white button with "M. W. L." thereon—a board of delegates, forty-nine in number, was elected by the prisoners themselves. This is Point Number Four. The prisoners did their own choosing of their delegate officers. The officers were not superimposed upon them by the prison officials. And in consequence, if these delegate officers did not act on the level; if they became stool-pigeons, bearing all

sorts of tales to the prison officials and currying favor thereby, then the prison administration would not be to blame for the choice of inmate officers. It would be squarely up to the inmates themselves. What was the result? A very simple one. Both the companies of inmates and their officers instinctively aimed to adjust themselves to secure the minimum of trouble, at chapel, in the shops, at recreation. Splendid group psychology, and withal so simple. And incidentally it can be said that the inmates have been able to handle most dexterously not a few "tough guys" who had been giving great trouble to the prison administration.

At this stage the movement became bigger than any one man, even Mr. Osborne. The latter had imprisoned himself, he had suggested the formation of the League; he had organized the League; but now it was up to the inmates to make of the League a success.

The fifth stage in the development of the League came suddenly and through necessity. Early in June an epidemic of scarlatina struck the prison. Ultimately, about a thousand prisoners were infected. Few were in the hospital, but shop work slackened up to a considerable degree. Were the prisoners in consequence to be locked day after day in their cells? Was it longer necessary? The answer came one afternoon when Warden Rattigan took a long chance. He turned all the prisoners belonging to the League out to exercise or play according to their hearts' content in the big yard, principally under the supervision of the delegates, who until now had been used to move the prisoners to chapel and to entertainments. It was a crucial test. It worked perfectly. Order was maintained, and no efforts to escape were made.

"The boys would tear a fellow to pieces that tried it," one of the prisoners explained to me. "We've pledged ourselves to behave. Besides, do you think we want to lose the privileges we've gained?"

By the Fourth of July the daily recreation period, from four o'clock on, had been going for about a month. What have been the results?

"Everything," answered one of the delegates. "Take my own case. Now I can sleep nights in that small hole in the wall called a cell. I have been here for years, and hardly ever had I had a decent night's sleep. Now I get tired in the recreation hour. And then, too, we have something to look forward to. It's a fearful mistake to make prison life so hopeless. You can't get the best

out of a man, in work or anything else, if you don't give him something to work for. Now, if we behave ourselves and are decent members of the League, we have a decent amount of freedom and privileges. We have competitive games in baseball, bowling, and the like. We feel we amount to something. The boys march now with their heads up. We eat better. The food tastes better. A lot of the sullen resentment and hatred of the prison administration is gone. The work in the shops is better. There's better discipline."

"What about dope?" we asked. "They say it's a curse at Sing Sing."

"Very little here now," said several delegates at once. "It isn't needed now, and it's frowned upon." Then up spoke one of the huskiest and best proportioned of the Executive Committee of the League. "I'll be frank," he said, emphatically. "I've taken pretty nearly every kind of dope that's known. I took it deliberately. Now I don't need it, and I've cut it out."

"Let me say something else, too," said another delegate. "There's mighty little prison vice here now. You know what I mean. Formerly, when we were all locked up for sixteen hours a day, and hadn't had any decent exercise, or anything to take our minds off of ourselves and our grievances, all sorts of bad things happened. That's the curse of the old prison regime. It turned out, among other things, a lot of degenerates. Now—well, we get pretty well tired, and our mind's taken off of ourselves, and we sleep. There's a good deal, too, in having that sort of thing put under the ban by the fellows themselves."

One of us then asked, "How about the growing criticism that prisoners are getting to have too easy a time of it? When we tell the public in general about this Fourth of July celebration, many will say that the prisoners are having more fun and an easier time than the honest taxpayer."

The delegate, in answering, flared up. "Tell those people to try any prison for a while! What's a prison for? To torture a man, and send him out hating society, and determined to get even for the years he's spent as the old-line prison made him spend it? Nobody except the fellow that's been through it knows what being in prison is. Does the public want us to go insane, get tuberculosis, contract wretched vices, rebel in mutinies, live sixteen hours out of twenty-four in a living tomb, and have day-in and day-out a miserable monotony of existence that dulls our minds and makes us hate the

State that munificently pays us a cent and a half a day, and then often takes away the earnings of months in one single fine for some offense that the very manner of existence here almost forces us to commit? Why, what is this hour of recreation, anyway? It's a health measure, a safety measure, a reformatory measure.

"Do you think fellows would commit crime in order to get into prison to have this little pittance of pleasure? Let me tell you that the very people that talk so about putting the clamps on this giving of soft snaps to prisoners don't know what that other system did to us. Why, there are a lot of fellows here that had made up their minds to pull off another trick just as soon as they got out. Why shouldn't they? But now we have something else to work for."

Much of the above conversation occurred at a meeting of the Executive Committee of the League, to which we were invited. It was essentially a novel experience. Here sat, in the warden's office, and without the warden or any prison official present, a round dozen of convicts, gray-suited and thoroughly in earnest. They discussed prison conditions and prison problems with all the freedom of a board of managers, and with far greater knowledge of actual conditions. Prisoners know more about a prison than does the warden, the warden than does the superintendent of prisons, the superintendent of prisons than do the inspectors, and the inspectors than does the public. Therefore, if the best efforts and the best loyalty of the prisoners can be harnessed up to a reformatory programme of the square deal for both sides, the possibilities of the future loom far larger than have reformatory possibilities in the past.

So Auburn Prison is pointing the way, by an almost revolutionary experiment, to large possibilities in inmate self-government in State prisons and reformatories. As I write these lines the newspapers bring a word of a similar Saturday afternoon passed in sports for the first time in the history of Sing Sing. Within the last week the State Reformatory of New Jersey, at Rahway, has adopted tentatively a modified form of inmate self-government. Great Meadow Prison, in New York State, which has been for several years the conspicuous honor prison of the eastern part of the country, marched its six hundred men down to the baseball game on July Fourth, a half-mile from the prison, under inmate overseers.

Self-government, to the limit of its possibilities, is almost a fetish with Mr. Osborne. For many years he was President of the Board of Trustees of the George Junior Republic; there he became convinced that self-government is workable not only for youngsters but for older delinquents.

In the old-line prison the ever-present dread of the traditional warden was an escape. His career was judged largely by his ability to suppress escapes and frequently by his ability to suppress public knowledge of the methods he used to keep order. Today the warden is judged able or poor partly by his ability to develop men out of his prisoners, men who on going out will make good. The entire theory of the old-line prison construction was based on the principle that any prisoner would escape if he could, and use desperate means of so doing. The bars and steel-work that you see everywhere in prisons throughout the country show how ingrained the theory has been. But up at Great Meadow, where the bulk of the prisoners roam unattended by guards at their work during the day, it is almost ridiculous to see them securely caged behind several strata of tool-proof steel at night.

In the last few years demonstrations in scores of prisons and other correctional institutions have shown that, if given the chance, when on honor, the prisoners won't run away. The old adage of "honor among thieves" has taken on an entirely new meaning. It is now "honor among thieves toward the State that trusts them."

The power of discipline in the League is very limited. The only punishment is suspension or elimination from the League. Such action is delegated to the Executive Committee of the League. Actually, this exclusion from the body politic—since almost every prisoner is a member of the League—carries with it two important disadvantages. It stamps the excluded inmates as *anti-social, not only to the prison administration, but to the body of prisoners*. Secondly, it bars the prisoner from enjoying the freedom privileges that the League enjoys. Therefore the power of suspension, be it for but a few days, has real force. The powers of discipline given to the League by the warden have not been accurately fixed as yet. The warden has told the League that all minor cases of discipline could be punished by them; wisely, I think, the officers of the League have not been desirous of punishing.

So that at present men are turned back to the prison authorities by the League for violation of the League discipline. The theory is that these men will be put back under the old discipline of silence and confinement, because they are no longer members of the League. The main body of the prisoners have then no official interest in them, so that the suspension involves practically a return to the old prison routine.

Recently a new Board of Delegates has been elected, and one of their first acts was to adopt a probation system instead of the definite sentence, in the cases of offenders against the League. A committee of parole has been established, which shall visit the suspended men at least once a week, and as soon as the committee thinks that the state of mind of the suspended men warrants the action the Parole Committee recommends to the Executive Committee the restoration of the men to the full privileges of the League.

“A big test is coming,” said one delegate, “when the members of the League go out. It will be up to them to justify by their conduct after prison the principles they accepted here and the privileges they received.” And the story was told us of one young man who was the first of the delegates to receive his release from prison. He is said to have made a hard fight to stay straight, mainly because he didn’t want to “put the League in bad” by having one of its officers go crooked.

And here opens up still another far-reaching possibility. Why should not the members of the League, once released from prison, form committees in the various cities and communities of the State for the purpose of helping the still later ones who come out of Auburn to make good? Heretofore the best that we of the Prison Association of New York have achieved has been to employ big-hearted and sympathetic parole officers—real friends of the released inmates. And we have scored good success. But it has been always a case of supervision and encouragement by the officer.

And so this was the proposition which we members of the Board of Managers of the Prison Association made to the Executive Committee of the League: “Will you co-operate with us in helping released prisoners from Auburn make their parole satisfactorily? Will you have small groups of ex-League members ready in various parts of the State to work with our county committees to the one end of tiding and helping the discharged and released prisoner over the hard months that immediately follow his release?”

With enthusiasm the suggestion has been accepted. One delegate spoke up: "I'm going out next month. I don't know where I'll get work, but I'm willing to go anywhere the League sends me. I'm willing and eager to give my life to this work, if I'm wanted!"

Such, briefly, is a picture of the Mutual Welfare League. That it is significant in its possibilities no one can doubt. What its outcome will be a year from now it would be hazardous to forecast. It may be but a burst ahead of the general humanitarian movement that characterizes prison reform throughout the country. It may be that when the altruistic enthusiasm that now holds the more thoughtful members of the League wanes, as wane it will to some extent, there will come a slump, and an arrogance of demand for more privileges that will give to the reactionary among prison administrators a chance to say, "I told you so!"

But I much doubt it. The greater danger will come from possible stupidity of prison administration, a change perhaps of authority at the prison, and a consequent lack of sympathy with the purpose of the League.

One thing seems sure. Prisons and reformatories will not go back to the old-line repressive and often brutal treatment. The transition to what will ultimately become the new treatment of delinquents is being attended by various experiments, often startling and sometimes amazing. We are not a Nation that thinks for a long time before acting in prison reform. Our successes have come so far largely from experimenting, retaining the successes and scrapping the failures. How much of the honor system, the back-to-the-land movement, the road-work movement, and the increasing classification of prisoners will be scrapped, it is much too early as yet to say.

The final test will probably be along two lines. We shall determine how the "new freedom" works within prison walls, applying the acid tests of health, increased efficiency in labor, reformatory value, education, and general training for a decent life in society. We shall also have to show, if we are friends of the "new freedom," that such treatment within the prison produces a larger number of permanent reformations after prison, a higher percentage of those who make good.

In short, the ultimate test is going to be not the increased possibility afforded the prisoner of enduring his prison term, nor yet the increased ease

of administration of correctional institutions, but fairly and squarely as to whether society, from which all these prisoners come, and which has been the sufferer by them, is to be permanently better protected from their further depredations by giving them what today seems to be a square deal within the prisons, and a decent chance to make good after they come out.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Road Work and Farm Work by Convicts—(In the clipping service of *The Delinquent*, road work and farm work by prisoners has become the most frequent single item of news. All over the country prisoners are working, or are “being worked.” We cite this month a number of items, taken at random, and showing the wide scope of the movement to use prisoners for out-door occupations that will benefit the community and the men also).

The first gang of convicts from Sing Sing prison are working on Catskill roads, and are camping. Most of them are short-term men.... In Pennsylvania, at Bellefonte, it is expected that the State will raise 10,000 bushels of wheat and 5,000 tons of hay on the State prison farm.... A bill providing that Federal prisoners kept in State penitentiaries or jails may be used for improving the public roads of any State has been introduced into the House of Representatives.... 20 prisoners have been at work in Franklin county, N. Y., and are netting \$20. a day to the taxpayers, putting in stone roads.... The State prison of Wisconsin is running two prison camps. The preliminary work in constructing the new industrial home for women is being done by the prisoners, making the roadbed, building a railroad spur, laying the sewer system, digging the tunnels and otherwise excavating. The workers wear khaki trousers, work shirts, overalls and straw hats. The road the other camp is working on is the regulation road with a fifteen-foot macadam driveway.... At Ames, Iowa, the convicts have had a “raise” in wages, as a result of their first week’s showing. They were receiving twenty cents an hour; now they get twenty-five. They have been working for the Iowa State College, first doing “odd jobs” around the institution, then oiling and cutting roads. “Adams, the guard with the men, is virtually losing his job as guard and becoming merely time-keeper for the bunch.” ... There are now three road camps in New Jersey, with 40, 60, and 60 men respectively. The State Road Department has a large appropriation for hiring prisoners to

improve the roads of the State.... At the farm of the New York City Reformatory for Misdemeanants, now under construction in Orange county, the results are as follows: "Two hundred tons of hay and two thousand bushels of potatoes already. A promise of ten thousand tons of fresh vegetables each season." This farm was started only last spring, and less than fifty young fellows have been at work on it. The produce is shipped to the Department of Correction in New York City.... Sussex county, N. J., requires its prisoners to work on the roads.... Warden Sanders, of Iowa State Prison, has 175 prisoners at work on farms near Fort Madison. With a big auto truck he can take gangs of laborers thirty or forty miles from the Penitentiary where help is needed.... At Auburn Prison, N. Y., a road camp of long-term men has been established, and the prisoners to be sent out in this camp have been chosen by the Mutual Welfare League, who stand sponsor for their good work while outside. Several men of the gang had never seen an automobile.... In Mesa county, Colo., prisoners in the county jail will next summer be allowed to choose whether they will make hay, build or repair roads. This summer it was hay or the rockpile.... Dr. O. F. Lewis, general secretary of the Prison Association of New York, has issued a public statement supporting the plan of Commissioner Davis to establish a municipal farm of 500 acres on land reclaimed from the sea in Long Island Sound, to be worked by prisoners of the Department.... Only one desertion from the Ames, Ia., prison camp had been reported up to July 22.... Residents of Tybee, Ga., have petitioned the county commissioners to use convicts in building roads.... Governor Major of Missouri will ask the next legislature to purchase a farm of at least 1,000 acres across the river from the State penitentiary, for the production of vegetables and meats. He estimates that 400 convicts could be employed. Contracts under the contract system expire at the end of this year.... Provisions of a bill before the Georgia legislature are that the county chain gang shall work four months of each year within the city limits of Macon, under the direction of the mayor and council.... A survey of the proposed prison farm of Ohio has been made by students of the engineering department of Ohio State University. The farm consists of 1,455 acres.... Jefferson county, N. Y., is contemplating purchasing a county jail farm.... The sheriff of Washington county, N. Y., is using a garden for prisoners' labor, partly because "weeding an onion bed is about the most tiresome work you can put a tramp to, and you won't see the fellow again after his term expires."... The North Carolina Good Roads

Association resolved in July that all State convicts who are suitable for road work should be used in the construction of public roads.... Prisoners from Great Meadow Prison, N. Y., are building a State road in the Adirondacks.... The Lancaster, Pa., Automobile Club asks convict labor for public roads.... Fifty more prisoners have been sent to the State Prison Farm of New Jersey. Ultimately about 300 prisoners will be busy there. There will be about 2,000 acres of land to cultivate.... Governor Stuart of Virginia has pointed out that there are 1,056 men in the jails of Virginia of whom no work is required, and he has urged the several State departments interested in the matter to consider ways and means to get these prisoners out on the roads.... It has been estimated that the State of Ohio has realized 88.8 per cent. profit in raising cattle on the penitentiary farm. 278 head of cattle were bought for 8 cents a pound in Chicago. It is estimated that the total gain of the cattle, which will be sold to State institutions, will be about \$4,500. A large dairy will be established on the farm.... From the District of Columbia Workhouse Farm, which received a maintenance appropriation this last year of \$130,000, \$60,000 will be returned in revenue, coming from the sale of brick manufactured on the farm.... The city of Washington has purchased 1,800 more acres on which to build a reformatory farm.... Superintendent Peyton, of the Indiana State Reformatory, wants to teach his inmates scientific farming, after the foundry contracts expire in November, 1915.... Thomas Mott Osborne has been spending several weeks, working with the prisoners, at several of the Auburn Prison camps.... City prisoners in Burlington, Ia., will again work on the streets. Sometime ago the prisoners were removed, but it was found that the city was the loser thereby, and that the prisoners wanted to work on the streets.... West Virginia is working State prisoners on roads.... The Sheriff of Suffolk county, N. Y., says that a prison farm is a necessity, and he has started to get one.... A life convict has run away from the honor camp at Auburn prison.... It is claimed that at least a dozen prisoners have escaped in the last few months from the New Jersey State prison farm.... Motion pictures showing convict road builders from the State penitentiary of Colorado at work will be taken in a few days on the Boulder Canon road....

(And the list might be continued almost indefinitely. The above notes are from clippings received during the first two weeks of August).

Important Resignations Announced—A number of important changes are taking place in executive positions in well-known prisons and reformatories. Warden Wolfer is shortly to leave the Minnesota State Prison. Warden Bridges has resigned from his long service at the Massachusetts State Prison, Warden Brown has been succeeded in West Virginia by State Senator M. Z. White. Chairman Frank L. Randall of the Massachusetts Prison Commission is said to be resigning on September 1st, Superintendent Reid of the Minnesota State Reformatory is to take Warden Wolfer's place, and Henry K. W. Scott, formerly warden of the New Hampshire State Prison, is to go to the position left vacant by Superintendent Reid.

Henry Wolfer has been in prison work 43 years. He began, says the Minneapolis Tribune, in a day when filth, vermin, brutality and torture were prominent features of prison life. He ends it as warden of a prison declared by many authorities to be one of the finest in the world. Warden Wolfer began as guard at Joliet Prison as a boy of 18. A recent number of the Delinquent () contained an article about the Warden's remarkable work as an administrator and as a business man.

Warden Bridges has been 21 years at the Massachusetts State Prison. The Boston Herald says that when he took hold, conditions were chaotic. The Warden has made a specialty of inmate education. The correspondence courses, run entirely within the prison, are noteworthy. The prison paper, the Mentor, is written entirely by hand, and facsimiled. The prison is a congregate, old, cramped structure. Recently, sports have been developed in the limited prison yard.

Warden Brown of the West Virginia Penitentiary seems to be making a place for another appointee. The Wheeling, W. Va., Intelligencer, says that the prison is losing the best and ablest executive it ever had. He had in three and a half years renovated the sanitary system, improved discipline, abolished corporal punishment, elevated the standard of the prison school, turned over to the State (by contract labor) \$120,000 above expenses, instituted a prison savings bank, with \$35,000 in prisoners' earnings for the overtime work, and has developed a prisoners' aid society for helping the families of convicts. He has also developed two camps.

Whether Chairman Randall of the Massachusetts Prison Commission is to leave Massachusetts is at the time of writing unsettled. Rumor has it that he has been seriously disappointed at the practically absolute failure of his extensive prison reform program to pass the Legislature, and also at the failure of the Legislature to appropriate an increase in salary which he was given to understand would occur this year, in view of the fact that he left Minnesota last year at considerable financial sacrifice. There is no question that Massachusetts will be a serious loser, if Mr. Randall goes. There seems also a certain amount of hostility toward an “imported” penologist. This is a sad attitude of mind, but not confined solely to Massachusetts.

Extension Courses of California University in Folsom Prison.—The report of the university extension director, in charge of the work at Folsom Prison, is interesting:

“We began in January, and the official enrollment is now 324 students. As I soon found that many of the men had brains no better developed than those of a child of 8 years, classes were formed in elementary English, German and arithmetic.

“The teaching is done by convicts who have proved themselves fitted for the positions, 15 being on the staff. Aside from financial reasons, this was done because the prisoners need teachers who are in sympathy with them.

“All are not permitted to take the school work; some because of conduct, others because they are unable to keep up to the required standard; still others do not wish to take it. Any man who is unprepared twice in succession is dropped from the class. Many failed on this account when the work was first began as they were using it merely as an excuse to get out of their prison duties.

“A man often wants to follow a profession or trade to which he is unsuited. Whenever one comes to me asking help in learning a trade, I find out what trade or profession he is best suited for.”

When asked if the convicts appreciated the work, Mr. Jacobs' face lighted up. "They do now," he said. "My hand is still sore from the greetings they gave me when I returned from a trip East, but they tried all sorts of tricks to get men when the work was first started."

Funds for Deserted Wives.—According to the Pittsburg Times, Pennsylvania's law which went into effect a year ago, providing payment to wives of men committed to the workhouse for non-support and desertion during the time the husband is serving his sentence, is proving a wonderful aid to women of Allegheny county, as proved by a record of the first year's results. About \$5,200 has been paid to 107 women since July, 1913, when the law went into effect, the average having been \$12.50 for each woman.

Lawrence M. Fagan, probation officer in Allegheny county, through whose hands these funds went, is enthusiastic. "It's been an excellent thing," he said, "an arrangement which has solved a problem that has confronted probation officers ever since the first man was sent to prison for non-support. Previously the wives were no better off while a man was in jail than they had been before and often were much worse off. They had nothing at all coming in in most cases. Seldom did they receive more than their earnings which in no case were large."

These women now can expect help each month. Every man is credited 65 cents a day for every day he works and the money is given his wife. This has amounted to \$17.45 a month in some cases, although often it has only been a few dollars, but in every case it has been received with great welcome.

Mr. Fagan explained that men are sent to the workhouse only as a last resort. They are generally given a chance to support their families after being arrested for the first time and then if they fail they are committed to prison. The payments have averaged \$400 from this source alone.

The general funds that pass through the hands of the probation officer from husbands who are supporting their families on order of the court, with the probation office as an intermediary, and from the workhouse to wives,

reached \$55,500 during the past six months. During June alone the total was \$10,600.

NOTES.

An autobus has been installed to carry prisoners from New York City to Sing Sing prison. This will do away with the necessity of marching prisoners from the station at Ossining to the prison, a distance of about half mile. The prison is thirty miles from New York.

A hospital for tubercular convicts is to be established at the Maryland State Penitentiary, an appropriation of \$35,000 having been made by the legislature. A prison school is also having excellent success.

Prison contracts are to be continued "indefinitely" in the New Jersey State prison, according to the Bayonne, N. J., Review of July 2d, because there are not sufficient funds for the installation of the State-use system. About 1,500 convicts are employed at the prison. Were the contracts permitted to lapse, the prisoners would be idle.

The county commissioners of Beaufort county, N. C., have voted that convicts on the county roads may be whipped. "The superintendent shall keep in his possession a lash 18 inches long, attached to a stick 18 inches long and not more than two inches in diameter, and said lash may split three times half-way from the end," according to the resolution. No convict may be whipped more than once during two consecutive days, shall not receive more than 25 lashes at one whipping, and must not be beaten on the neck or head. (We append these details, because relics of barbarism should also be recorded in the Delinquent. Ed).

Out of a total of 1,478 prisoners confined in the Eastern Penitentiary of Pennsylvania 1,008 have signed a petition which will be submitted to the next legislature asking Statewide prohibition.

The old State prison at Stillwater, Minn, was practically abandoned on July 31st, when the last shoe contract expired. Hereafter all work at the Stillwater (new) prison will be done for the State.

During July some riots of considerable seriousness occurred on Blackwell's Island, New York City. Indictments for assault in the second degree have now been returned against the five ringleaders in the riots at the Penitentiary on July 8th. A maximum sentence of five years is attached to conviction.

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O. F. LEWIS, Editor and Business Manager.

Sworn to and subscribed before me this 27th day of March, 1914.

H. L. McCORMICK, Notary Public No. 6, Kings County.
My Commission expires March 31, 1914.

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